

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 24, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202210999, followed against A.A.A. (hereinafter, the respondent). In this resolution, in addition to imposing a fine, the following measures were required: "SECOND: ORDER A.A.A. to immediately cease the publication of personal data of the complainant and their family, as well as the personal data of those amateur radio operators who have not given their consent, or for whom they lack legitimacy for processing, and to inform this Agency within 10 days about the measures adopted."

SECOND: The resolution of the sanctioning procedure, which granted a period of 10 working days for the adoption of the imposed measures, was notified to the respondent, in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated June 16, 2023, after the attempt at postal notification proved unsuccessful, as evidenced in the file.

THIRD: After the indicated period elapsed without any written communication received by this Agency regarding the measures implemented by the respondent, they were again required to provide evidence within ten working days to this Agency that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

This requirement, to which a copy of the resolution of the sanctioning procedure was attached, was collected by the responsible party on June 28, 2023, as evidenced by the acknowledgment of receipt in the file.

FOURTH: The respondent has not submitted any response to this Agency that evidences compliance with the imposed measures.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be lodged due to the expiration of the established deadlines for such. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SIXTH: On January 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

SEVENTH: The agreement to initiate the present sanctioning procedure was collected by the respondent on January 18, 2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirement for compliance with the measures imposed therein, indicated in the first to third backgrounds, were notified in accordance with the provisions of the LPACAP. This resolution became final and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not submitted any response to this Agency that evidences compliance with the imposed measures.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 42 of the LPACAP, on January 18, 2024.

FOURTH: The respondent has not submitted any allegations to the initiation agreement of this sanctioning procedure.

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LEGAL GROUNDS

I

Jurisdiction

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Breach of Obligation

In light of the facts presented, it is considered that the respondent has failed to comply with the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them. Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement attributable to the respondent for violating Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

“m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 500.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 500.00 euros (FIVE HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 10 working days from the date this resolution becomes final and enforceable, to provide evidence of having complied with the measures ordered in the Resolution of the sanctioning procedure of file number EXP202210999.

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THIRD: NOTIFY this resolution to A.A.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the

next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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